

Court No. - 39

Case :- WRIT - C No. - 14992 of 2024

Petitioner :- Babita Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Alka Upadhyay,Rajneesh Tripathi

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.

Hon'ble Saumitra Dayal Singh,J.

Hon'ble Donadi Ramesh,J.

1. Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the power distribution corporation.
2. Against communication dated 09.01.2024 issued by Executive Engineer, the petitioner has remedy before the Consumer Grievance Redressal Forum & Ombudsman under Clause 7.10 of the U.P. Electricity Supply Code, 2005.
3. In face of efficacious and alternative remedy available where facts dispute may also be examined and since at present communication dated 09.04.2024 has not been challenged, interference claimed under Article 226 of the Constitution of India is declined.
4. However, the writ petition is disposed of with the direction, subject to the petitioner availing remedy of appeal within a period of three weeks from today, the same may be dealt with and decided without raising objection as to limitation as expeditiously as possible.

Order Date :- 7.5.2024

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(Donadi Ramesh, J.)

(S.D. Singh, J.)

